

RESOLUTION OF RIGHTS PROCEDURE

Having reviewed the complaint registered on August 10, 2023, with this Agency and having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: On August 10, 2023, a complaint was received by this Agency filed by Mr. A.A.A. (hereinafter, the complainant) against ASESORÍA AZNAREZ SLP (hereinafter, the respondent) for not having duly addressed his rights of access and limitation.

The complainant states that, by burofax dated May 25, 2023, he requested access to all his personal data, limitation of processing, and deletion (blocking) of his personal data related to an administrative sanction imposed by the Mataró Bar Association, which was annulled by a final judgment issued on ***DATE.1 in 2016 by the Administrative Court No. XX of Barcelona in Ordinary Procedure

***PROCEDURE.1. He indicates that the aforementioned burofax could not be delivered and that the postal service left a notice for it to be picked up at their offices, which did not happen.

He also claims that false personal data extracted from an annulled file have been used and submitted to a court.

He provides a copy of the delivery proof issued by the postal service for the burofax sent by the complainant to B.B.B. dated May 25, 2023, which states "Not delivered, notice left," and a second delivery proof stating "Not delivered by Sobrante (Not picked up at the office)."

SECOND: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The respondent indicated, as far as this procedure is concerned, that the complainant lives and is part of the community of property owners of which the respondent is the administrator, and that there have been numerous judicial and other administrative proceedings between both parties.

The respondent states that they received the complainant's request, "(...) They were offered to come to the advisory office I manage and verify the documentation they deemed appropriate. They did not do so. I cannot prove it -because I did not do it through a reliable communication- that this fact is true."

The respondent indicates that the complainant "(...) has not exercised any right or communication -neither by email nor by regular mail or other means, such as accessing the interior of the office (...) - The sending of a burofax to 'Fincas ***FINCAS.1' is absurd (...) simply because such company does not exist (...); it is worth mentioning that (...) they do not provide a copy of their identity document -a mandatory requirement-."

Furthermore, the respondent states that the right of access being sought "(...) is fraudulent since -like any property administrator- no personal data is kept. (...) I can hardly rectify or cancel since what A.A.A. seeks is not in the file I keep of the Community of Property Owners."

THIRD: The outcome of the transfer procedure indicated in the previous Fact did not allow for the satisfaction of the complainant's claims. Consequently, on November 10, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for the Protection of Data agreed to admit the complaint for processing.

The aforementioned agreement, received by the respondent on January 17, 2024, as stated in the acknowledgment of receipt issued by the postal service, granted the respondent a hearing period, to present any allegations they deemed appropriate within ten working days, without any response from the respondent being recorded in this Agency.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47,

48.1, and 64.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for the Protection of Data is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, by the general rules on administrative procedures."

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II

Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Data Protection Agency is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and the promotion of awareness among data controllers and processors regarding their obligations, as well as addressing complaints filed by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of data controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have appointed a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with said authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, the complaint was forwarded to the respondent for analysis, requiring a response to this Agency within one month and proof of having provided the due response to the complainant.

The result of this forwarding did not satisfy the claims of the complainant. Consequently, on November 10, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing determines the opening of the present procedure regarding the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, according to which:

"When the procedure refers exclusively to the lack of attention to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it will be initiated by an admission agreement, which will be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure will be six months from the date on which the admission agreement was notified to the complainant. After this period, the interested party may consider their complaint accepted."

Article 58.2 of the GDPR grants the Spanish Data Protection Agency a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

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III

Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the

GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the provisions expressed in Recitals 59 and following of the GDPR.

In accordance with these regulations, the data controller must establish formulas and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless it can demonstrate that it is unable to identify the data subject, and must state its reasons if it does not intend to comply with such a request. The burden of proof regarding compliance with the obligation to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible manner, using clear and simple language.

IV

Right of Access

According to the provisions of Article 15 of the GDPR and Article 13 of the LOPDGDD, "the data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning them is being processed and, if so, the right of access to the personal data."

Regarding the right of access to personal data, in accordance with Article 13 of the LOPDGDD, when the exercise of the right refers to a large amount of data, the controller may request the affected party to specify the "data or processing activities to which the request refers." The right will be deemed granted if the controller provides remote access to the data, considering the request fulfilled (although the data subject may request the information referred to in the aspects provided in Article 15 of the GDPR).

The exercise of this right may be considered repetitive if it is exercised more than once within a six-month period, unless there is a legitimate reason for doing so. Furthermore, the request will be considered excessive when the affected party chooses a means other than that offered which incurs a disproportionate cost, which must be borne by the affected party.

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Like the other rights of the data subject, the right of access is a personal right. It allows the citizen to obtain information about the processing of their data, the possibility of obtaining a copy of the personal data concerning them that is being processed, as well as information, in particular, about the purposes of the processing, the categories of personal data concerned, the recipients or categories of recipients to whom the data may be communicated, the expected retention period or criteria for retention, the possibility of exercising other rights, the right to lodge a complaint with the supervisory authority, the information available about the source of the data (if it has not been obtained directly from the data subject), the existence of automated decision-making, including profiling, and information about transfers of personal data to a third country or to an international organization. The possibility of obtaining a copy of the personal data being processed shall not adversely affect the rights and freedoms of others.

V

Right to Restrict Processing

Article 18 of the GDPR, which regulates the right to restrict the processing of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the data controller the restriction of processing of personal data when one of the following conditions is met:

- a) the data subject contests the accuracy of the personal data, for a period enabling the controller to verify the accuracy of the data;
- b) the processing is unlawful and the data subject opposes the deletion of the personal data and requests instead the restriction of its use;
- c) the controller no longer needs the personal data for the purposes of processing, but the data subject needs them for the formulation, exercise, or defense of legal claims;
- d) the data subject has objected to processing under Article 21(1), while verifying whether the legitimate grounds of the controller override those of the data subject.

2. When the processing of personal data has been restricted under paragraph 1, such data may only be processed, except for storage, with the consent of the data subject or for the formulation, exercise, or defense of legal claims, or to protect the rights of another natural or legal person or for important public interest reasons of the Union or of a particular Member State.

3. Any data subject who has obtained the restriction of processing under paragraph 1 shall be informed by the controller before the lifting of that restriction."

It should be noted that the right to restrict processing enables the claiming party to limit the processing of data when the accuracy of the personal data is contested, for a period allowing the controller to verify the accuracy of the data; when the processing is unlawful and the data subject opposes the deletion of the personal data.

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of personal data; when the data controller no longer needs the personal data for the purposes of processing, but it is necessary for the formulation, exercise, or defense of claims, or when the data subject has objected to the processing, while verifying whether the legitimate grounds of the data controller override those of the claimant.

VI

Conclusion

The rights procedure is initiated as a result of the lack of attention to any of the rights regulated in the data protection regulations. Therefore, only the facts related to the requested rights will be analyzed and assessed, excluding other issues.

In the present case, and considering the provisions of the first paragraph of this legal basis, from the examination of the documentation provided by the parties, it has been established that the claimant sent a burofax to the respondent, which could not be delivered, requesting the rights of access, limitation of processing, and deletion of their data, without receiving a response.

It should be noted that the claimant has filed a complaint with this Agency solely for not having their rights of access and limitation duly attended to.

During the processing of this procedure, the respondent has indicated that, although they cannot prove it, they informed the claimant that they could come to their offices to exercise their rights, but the claimant did not attend.

Regarding the statements made by the respondent indicating that the claimant did not exercise their rights because the burofax was addressed to Fincas ***FINCAS.1, an entity that does not exist, the claimant has provided a copy of the delivery certification issued by the postal service, which states that it was addressed to "B.B.B. ***FINCAS.1". Furthermore, although it is true that the claimant must prove the exercise of their rights, in this case, the lack of receipt occurred because the entity to which it was addressed did not collect the sent documentation, allowing it to expire and be returned by the postal service, preventing the claimant from exercising their rights. In any case, the inactivity on the part of the respondent cannot serve as an excuse for non-compliance with their obligations established in the data protection regulations, especially since they were aware of the claimant's request during this procedure.

It cannot be accepted that the response that corresponds to be given can be expressed during a mere

administrative procedure, such as the submission of allegations regarding this procedure, initiated precisely for failing to duly address the request in question.

The aforementioned regulations do not allow for the request to be overlooked as if it had not been made, leaving it without the response that the data controllers are obliged to issue, even in the event that there are no data in the files or even in those cases where the request does not meet the stipulated requirements, in which case the recipient of such a request is also obliged to require the correction of

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the deficiencies observed or, if applicable, deny the request with justification indicating the reasons why the right in question cannot be considered.

Therefore, the request made obliges the responsible party to provide an express response in all cases, using any means that justifies the receipt of the response.

Given that a copy of the necessary communication that must be sent to the claimant informing them of the decision made regarding the requests for the exercise of rights is not attached, it is appropriate to uphold the claim that initiated this procedure.

In addition to the above, it is necessary to recall what was established by the Audiencia Nacional in its ruling of April 1, 2011, which states:

"The importance and significance of data protection regulations and the relevance of the constitutional rights at stake advise against using them for personal disputes that should be resolved in different arenas, which should only be relevant in the domestic sphere and not in a jurisdictional context. The seriousness involved in exercising the sanctioning power advises that the corresponding administrative and jurisdictional mechanisms should only be activated when it is assumed that a true violation of the fundamental right to data protection has occurred."

In light of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO UPHOLD the claim made by Mr. A.A.A. considering that the provisions of Articles 15 and 18 of the GDPR have been infringed and to urge ASESORÍA AZNAREZ SLP with NIF B62470455, to, within ten working days following the notification of this resolution, send to the claimant a certification addressing the requested rights or denying them with justification indicating the reasons why the requests cannot be met, in accordance with the provisions established in the body of this resolution. The actions taken as a result of this Resolution must be communicated to this Agency within the same timeframe. Non-compliance with this resolution could result in the commission of an infringement of Article 83.6 of the GDPR, classified as very serious for the purposes of prescription in Article 72.1.m) of the LOPDGDD, which will be sanctioned in accordance with Article 58.2 of the GDPR.

SECOND: NOTIFY this resolution to A.A.A. and to ASESORÍA AZNAREZ SLP.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the Audiencia Nacional, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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